

25VECV04922 25VECV04922

County: los-angeles

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Department: 107

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Case Number: 25VECV04922 Hearing Date: September 9, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

ILIA SHAPIRO,

Plaintiff,

v.

KEYES EUROPEAN, LLC, ET AL.

Defendants.

Case Number Department

25VECV04922 107

COURT'S [TENTATIVE]
ORDER RE:

Motion
to Compel Further Discovery Responses

[THE

FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

Plaintiff

Ilia Shapiro ("Plaintiff") worked as a sales manager. (First Amended Complaint ["FAC"] ¶¶ 12.) Defendant David Kohan was the general manager employed by Defendants Keyes European, LLC ("Keyes") and/or Lithia Motors, Inc. ("LMI"). (FAC ¶ 4.) Kohan "initiated a pattern of discrimination and harassment based on Plaintiff's age, who was sixty-four years old at the time, and his Russian national origin." (FAC ¶ 14.) On or around September 21, 2021, about two months after Plaintiff returned from medical leave, Plaintiff was terminated from his employment. (FAC ¶ 31.)

On August 29, 2025, Plaintiff filed a complaint against Defendants Keyes, LMI, Kohan, and Does 1 through 10, alleging nineteen causes of action.

On December 8, 2025, Plaintiff filed a first amended complaint against Defendants Keyes, LMI, Kohan, and Does 1 through 10, alleging causes of action for: (1) age discrimination (Gov't Code section 12940, subdivision (a)); (2) disability discrimination (Gov't Code section 12940, subdivision (a)); (3) national origin discrimination (Gov't Code section 12940, subdivision (a)); (4) harassment and hostile work environment (Gov't Code section 12940, subdivision (j)); (5) failure to provide reasonable accommodation (Gov't Code section 12940, subdivision (m)); (6) failure to engage in the interactive process (Gov't Code section 12940, subdivision (n)); (7) retaliation for protected activity (Gov't Code section 12940, subdivision (h)); (8) failure to prevent discrimination, harassment, and retaliation (Gov't Code section 12940, subdivision (k)); (9) whistleblower retaliation (Labor Code section 1102.5); and (10) retaliation for exercising labor code rights (Lab. Code section 98.6)).

On January 29, 2026, Plaintiff filed a request to dismiss Defendant Keyes and Keyes was dismissed. (01/29/26 Request for Dismissal.)

On March 4, 2026,
Plaintiff filed a motion to compel further responses to discovery (the
“Motion”). On April 29, 2026, Defendant Lithia Motors, Inc. (“Defendant”) filed
an opposition. On May 5, 2026, Plaintiff filed a reply.

II.

SEPARATE MOTIONS

Plaintiff filed a
single motion to compel Defendant’s further responses to Special
Interrogatories, Set One, Requests for Production of Documents, Set One, and
Form Interrogatories – Employment, Set One. (Motion pp. 1-2.) The Motion should
have been filed as three separate motions, one for each set of discovery.

Combining
motions deprives the court of filing fees, unfairly jumps ahead of other
litigants, and negatively impacts the court’s calendar by placing more motions
on the calendar than slots have been provided by the court’s reservation
system.

“[I]t
is mandatory for court clerks to demand and receive the fee required by statute
before documents or pleadings are filed.” (Duran v. St. Luke’s Hospital (2004)
114 Cal.App.4th 457, 459.) Plaintiff is ordered to pay the requisite filing
fees.

III.

DEFENDANT’S

OBJECTIONS

Defendant
submits objections to Anna Coughlin’s declaration. The basis for these
objections is Coughlin purports to submit Form Interrogatories – Employment,
Set One, as an Exhibit attached to Coughlin’s declaration. (Coughlin
Declaration ¶ 2.) Form Interrogatories – General is attached to Coughlin’s
declaration as Exhibit C. (Coughlin Declaration Ex. C pdf pp. 31-38.) Form
Interrogatories – Employment, Set One, are not attached to Coughlin’s
declaration. Similarly, although Defendant’s responses to Form Interrogatories
– General, Set One, are attached as Exhibit F, no responses to Form
Interrogatories – General are attached to Coughlin’s declaration. (Coughlin

Declaration Ex. F pdf pp. 101-124.)

Evidence

Grounds

Ruling

Coughlin Declaration, ¶ 2 “Form Interrogatories – Employment, Set One.” and Exhibit C.

Irrelevant; lacks foundation;
improper attorney declaration.

Sustained

Coughlin Declaration, ¶ 4 “. . . Form Interrogatories – Employment are attached hereto as Exhibits D, E, and F, respectively.” and Exhibit F.

Irrelevant; lacks foundation;
improper attorney declaration.

Sustained

IV.

TIMELINESS

Motions to compel further responses to a demand for inspection, copying, testing, or sampling and interrogatories must be brought within 45 days of receiving the challenged responses, or as otherwise agreed upon in writing.¿ (Code Civ. Proc. §§ 2031.310, subd. (c), 2030.300, subd. (c).) Electronic service extends the deadline by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Defendant served Plaintiff with responses on January 15, 2026. (Coughlin Declaration ¶ 3.) The attached proofs of service show Defendant served the responses to Special Interrogatories, Set One, and Request for Production of Documents, Set One, by email. (Coughlin Declaration Ex. D pdf p. 60; Ex. E pdf p. 99.) Forty-five days, plus two court days for

electronic service, was March 3, 2026. Plaintiff filed the Motion on March 4, 2026. Thus, the Motion as to as to Special Interrogatories, Set One, and Request for Production of Documents, Set One is untimely.

Plaintiff did not submit the proof of service for Defendant's responses to Form Interrogatories – Employment. Thus, the court cannot determine how Defendant served its responses Form Interrogatories – Employment. The court applies the 45-day deadline and determines the Motion as to Form Interrogatories – Employment is also untimely.

V.

CONCLUSION

For the foregoing reasons, the Motion is denied as untimely.

Dated: September 9, 2026

Eric Harmon

Hon.

Judge of the Superior Court